

for enforcement) GOMEZ refused to include the agreed-upon term that failure to make payments after closing would result in transfer of the Porter Property to SHARMA. (See, e.g., Declaration of Ali A. Aalaei in Support of Opposition (“Aalaei Dec.”) at ¶ 10, Exhibit G.) GOMEZ also misunderstood the agreement with regard to payments to MADAM, asserting that MADAM was to receive \$200,000 in total when the agreement was for MADAM to receive a \$25,000 down payment and a further \$200,000 promissory note. (*Ibid.*) GOMEZ also maintained that the promissory notes must be recorded after close of escrow for sake of preserving GOMEZ’s lender’s first-priority position but did not execute the notes despite the parties’ agreement on that point. (*Ibid.* [stating requirement notes be recorded after escrow]; Declaration of Mark Mitchell in Support of MADAM’s Reply (“Mitchell Dec.”) at ¶ 22, Exhibit 12 [stating agreement].) SHARMA and MADAM state their continued readiness to close the transaction now that they have been provided a purchase agreement form that does not represent Mr. Mitchell as a real estate broker. (Mitchell Dec. at ¶ 25, Exhibit 14; Aalaei Dec. at ¶ 9, Exhibit E.)

SHARMA and MADAM’s motion is granted as follows: GOMEZ is ordered to close the purchase of the Porter Property with the agreed down payments of \$655,000 to SHARMA and \$25,000 to MADAM within forty-five days of the date of this order.

GOMEZ is ordered to execute the agreed promissory note to SHARMA in the amount of \$675,000 and the agreed promissory note to MADAM in the amount of \$200,000 within forty-five days of the date of this order. SHARMA and MADAM are ordered to refrain from recording either promissory note until after close of escrow.

Failure by GOMEZ to observe the terms of the settlement agreement by the renewed deadline will result in judgment issuing against GOMEZ and granting immediate possession of the Porter Property to SHARMA, aligning with the clear intent of the settlement agreement that GOMEZ’s continued possession of the Porter Property is contingent on payment to SHARMA and MADAM and execution of promissory notes.

DO TKNN LLC v. NAZILA EDALATI
Case No. CU24-06943

Motion to Compel

TENTATIVE RULING

Parties to appear.

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